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CASE #	CASE NAME	HEARING NAME
CVME2600802	HARDY VS SUN CITY CIVIC ASSOC	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/ WRONGFUL DEATH TORT BY SUN CITY CIVIC ASSOC, NORMA ZERMENO, SUZIE HUNT, BOYD BARRETT, AVALON MANAGEMENT, AND PETER RACOBS

Tentative Ruling: Joinder Granted. Request for Judicial Notice is Denied. Motion for Judgment on the Pleadings granted as to the First Cause of Action (Harassment), Second Cause of Action (IIED), Sixth Cause of Action (Negligent Hiring, Retention, and Supervision), and the Eighth Cause of Action (Negligent Interference with Prospective Economic Advantage). Plaintiff granted 30 days leave to amend.

Request for Judicial Notice - Plaintiff asks the court to take judicial notice of a Complaint filed in a different action – CVRI 2306399. (RJN Ex. A.) Plaintiff argues this separate and unrelated lawsuit brought by a different plaintiff against the same defendants bears on the foreseeability of Holley’s conduct, the Association’s prior notice, and the defenses asserted by moving parties.

Though the Complaint is a court record subject to judicial notice under Evidence Code §452(d), it is not relevant or necessary to the Court’s analysis. (See *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6; *Appel v. Superior Court* (2013) 214 Cal.App.4th 329, 342, fn. 6.) The Complaint in a separate matter does not bear on whether the allegations in the instant Complaint are sufficiently alleged.

Plaintiff also submits another document titled Request for Judicial Notice, also filed on June 12, 2026. However, this document appears to be more of a declaration seeking to introduce evidence before the court. Specifically, Plaintiff provides copies of an email between herself and board members (Ex. 1 & 2), and a Certificate indicating Defendant Holley completed anti-harassment training as part of his position as an Association Board member. (Ex. 3.) These documents are not the proper subject of judicial notice. To the extent Plaintiff is simply introducing the documents to support her Opposition to the motion, they are not properly considered on a motion for judgment on the pleadings.

Meet and Confer - Pursuant to Code of Civil Procedure §439, before filing a motion for judgment on the pleadings, the moving party must meet and confer with opposing counsel to try and resolve the issue. The moving party shall file a declaration with their motion for judgment on the pleadings stating either the means by which the parties met and conferred and that they did not reach an agreement, or that opposing counsel did not respond to their request to meet and confer. (CCP §439(3).)

The motion is accompanied by the declaration of Attorney James Fazio, who spoke with Plaintiff via telephone on April 30, 2026. (¶¶2.) This satisfies the meet and confer requirement.

Judgment on Pleadings

A motion for judgment on the pleadings has the same function as a general demurrer and the same rules govern except as provided by CCP §438. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) CCP §438 sets forth the grounds and procedures for the motion. The grounds for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which the court may judicially notice. CCP §452 provides that “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (CCP §438(h)(1).) However, leave to amend is routinely granted. (*People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.) Denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment. (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (CCP §438(h)(2).)

Harassment – First Cause of Action - Plaintiff first alleges harassment under CCP §527.6 against all defendants. This section permits “[a] person who has suffered harassment” to “seek a temporary restraining order and an order after hearing prohibiting harassment.” That section defines harassment as “a knowing and willful course of conduct directed at a specific person that seriously alarms, annoys, or harasses the person, and that serves no legitimate purpose.” (§527.6(b)(3).)

Defendants argue there is no basis for holding them vicariously liable for Holley’s own private behavior. A corporate officer or director will not be liable for torts that they have not personally participated in, did not consent to, or have knowledge of. “While the corporation itself may be liable for such acts, the individual officer or director will be immune unless he authorizes, directs, or in some meaningful sense actively participates in the wrongful conduct.” (*Asahi Kasei Pharma Corp. v. Actelion Ltd.* (2013) 222 Cal.App.4th 945, 966.) Here, there are no allegations that any of the individual defendants acted in any way to personally harass Plaintiff or otherwise knew about and ratified Holley’s alleged harassing behavior.

Plaintiff appears to rely on an agency and/or vicarious liability theory. “Agency is the relationship with results from the manifestation of consent by one person to another that the other shall act on his behalf and subject to his control, and consent by the other so to act. [Citation.]” (*Gordon v. ARC Manufacturing, Inc.* (2019) 43 Cal.App.5th 705, 718, internal quotes omitted.) An agent is one who represents the principal in dealings with third persons. (Civ. Code, § 2295; *Garlock Sealing Techs., LLC v. NAK Sealing Techs. Corp.* (2007) 148 Cal.App.4th 937, 964.) “[T]he principal is responsible to third parties for the misconduct of an agent committed within the scope of his authority even though the principal is completely innocent and has received no benefit from the transaction.” (*Warshauer v. Bauer Const. Co.* (1960) 179 Cal.App.2d 44, 49.) A principal is responsible for no other wrongs committed by his agent other than the negligence of his agent “in the transaction of the business of the agency” unless he has authorized or ratified. (Civ. Code, §§ 2338, 2339.)

“An employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (*Lisa M., supra*, 12 Cal.4th at 296.) “[A]n employee’s willful,

malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts. (*Id.* at 296-297.) However, “the employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee’s work.” (*Id.*)

The Complaint alleges defendants Hunt and Barrett are sued in their individual capacities and “for ratification of the misconduct alleged herein.” (Comp. ¶¶4-5.) Avalon Management is sued in its business entity capacity. (¶6.) Defendant Zermeno is sued in her individual capacity and in her capacity as an agent for Avalon for her own wrongful conduct. (¶7.) Defendant Racobs is sued in his individual capacity. (¶8.) Plaintiff generally alleges each defendant was the agent, employee, partner, joint venturer, and/or representative of each other defendant. (¶10.) The only factual allegations against the moving defendants are that they allegedly knew of Holley’s rude comments, voicemails, and text messages to Plaintiff and did not take action against Holley. (Comp. ¶¶18-20.) These allegations are not sufficient to establish any vicarious liability for moving defendants as to Holley’s conduct. Plaintiff does not allege facts that demonstrate moving defendants authorized, directed, instructed, or otherwise ratified Holley’s personal conduct. For this reason, Plaintiff has not alleged a harassment claim against any moving defendant.

IIED – Second Cause of Action - The elements of an IIED cause of action are: (1) outrageous conduct by defendant; (2) the defendant’s intention of causing or reckless disregard for the possibility of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation. (*Fletcher v. Western National Life Ins.* (1970) 10 Cal. App. 3d 376, 394.) Outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal. App. 4th 736, 745.) Allegations of sexual harassment are sufficient to state a cause of action for IIED. (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal. App. 3d 590, 618.)

The same issue exists with this cause of action – there are no factual allegations against the moving defendants. Plaintiff only alleges Holley acted against her in any way. The other allegations in the Complaint are insufficient to sustain a cause of action against the moving defendants.

Negligent Hiring, Retention, and Supervision – Sixth Cause of Action - An employer can be held liable for the negligent hiring, supervision or retaining of an unfit employee if the employer knew or should have known that the employee created a particular risk and that particular harm materializes. (*Doe v. Capital Cities* (1996) 50 Cal. App. 4th 1038.)

Plaintiff brings the sixth cause of action against Avalon Management and the “Board of Directors.” The Board of Directors is not an identified Defendant, but the Court can only decide the motion based on the moving Defendants, which includes Avalon Management. The Complaint alleges Defendants “knew or should have known of Holley’s propensity for harassing and abusive conduct, including his prior conduct toward others (including police chief and mayor) and his behavior of using profanity at open board meetings.” (¶59.) Plaintiff alleges Avalon received actual notice of Holley’s

harassment on September 19, 2024, when she shared the voicemail and text messages she received from Holley. (¶60.) Plaintiff alleges that despite having actual knowledge of Holley's conduct, defendants failed to take reasonable steps to supervise, discipline, or remove Holley and instead ratified his conduct by inaction and making him president of the Board. (¶61.) The Complaint also alleges Avalon acted as the professional management company for SCCA and provided management services, advised the Board of Directors, and exercised control over Association operations. (¶6.) It is not clear from the Complaint that Holley was an Avalon employee. Plaintiff alleges Avalon advised the Board of Directors and that Defendants "voted [Holley] in as president of the board." (¶61.) However, it is not clear from Plaintiff's allegations that Avalon had any authority or say in who became Board president. The motion is granted.

Negligent Interference with Prospective Economic Advantage – Eighth Cause of Action

- The elements of a claim of interference with economic advantage and prospective economic advantage are: (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional or negligent acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1153; *Crown Imports, LLC v. Superior Court* (2014) 223 Cal.App.4th 1395, 1404.)

Plaintiff alleges she had established business relationships and reasonably expected future economic advantage from her business activities. (¶72.) Plaintiff alleges Defendants "knew of Plaintiff's business and her need for a professional reputation within the community." (¶73.) Plaintiff alleges Defendants' negligent conduct, including failing to supervise Holley and discipline him, disrupted Plaintiff's relationships with actual and prospective customers. (¶74.) Plaintiff alleges she has suffered "approximately \$500,000 in lost revenue, diminished shareholder value, and good will of corp." (¶75.)

The Complaint does not allege any specific facts about specific third parties Plaintiff had an economic relationship with. The Complaint does not allege Defendants had any specific knowledge of those alleged relationships. This cause of action is pled entirely with conclusory statements and generalities. This is not sufficient to sustain a cause of action

Individual Defendants – Hunt, Barrett, and Zermeno - Three of the moving defendants are individuals – Suzie Hunt, Boyd Barrett, and Norma Zermeno. The motion argues no statements or acts are attributed to these individuals in the Complaint, meaning no claim is sufficiently alleged against them.

Hunt is only individually referenced in the Complaint in paragraph 4, where she is identified as an individual residing in Riverside County and as a member of the Board of Directors. (¶4.) Similarly, Barrett is only individually referenced in the Complaint in paragraph 5, where he is identified as an individual residing in Riverside County and as a member of the Board of Directors. (¶5.) Plaintiff alleges she sent a voicemail from Holley to Zermeno on September 15, 2024. (Complaint ¶20.) Plaintiff sent an email to Zermeno, among others, requesting an emergency board meeting after her first

conversation with Attorney Racobs. Plaintiff sent an email to Zermeno resigning her position on the Board. (¶20.) Zermeno is included in email chains attached to the Complaint.

The Complaint does not allege any actions, let alone harassing actions, or omissions by these Defendants. At most Plaintiff has alleged that Zermeno was a part of a few email chains. There are no factual allegations made against these defendants in the Complaint. For this reason, the motion is properly granted with respect to these defendants.

Individual Defendant Racobs -

Racobs filed a motion for joinder to the motion for judgment on the pleadings. Racobs incorporates the moving defendant's arguments and asks that his motion for judgment on the pleadings be granted for the same reasons. Racobs also filed a substantive Reply in response to Plaintiff's Opposition to the motion. Racobs contends Plaintiff did not plead facts against the original moving codefendants or Racobs that can serve as the basis for vicarious liability. Racobs notes he was not Holley's employer, supervisor, or partner. Racobs notes that in Plaintiff's opposition brief she acknowledges Racobs was not her attorney and he did not owe her any duties as a lawyer. The Opposition identifies Racobs as "legal counsel to the Association and Avalon." (Opp. p.4:25-26.) Plaintiff does not oppose the joinder itself. Rather, she opposes the motion. Racobs is asserting the same arguments as the moving defendants, which is demonstrated by the Reply Racobs filed in response to Plaintiff's Opposition.

As to the merits of the motion concerning Racobs, the Complaint alleges Racobs served as legal counsel to SCCA, its Board of Directors, and Avalon Management. (¶8.) Plaintiff alleges Racobs knew of Holley's harassment and did not take any disciplinary action against Holley. (¶19.) Racobs is then included in various email chains attached to the Complaint.

The Complaint does not include any specific factual allegations against Racobs. There is no allegation that Racobs harassed Plaintiff in any way. There is no allegation that Racobs, as the Association's attorney, had any authority or control over Holley.